

Request to File an Order Form 28

Provincial Court Family Rules

You can complete and file most family forms online using the Family Law Act Online Forms Service.

Access the service at justice.gov.bc.ca/apply-for-family-order.

The free service includes guided pathways that ask you questions and put your answers into the required court forms. When you're finished, you can save and file your forms electronically or print them to file in person.



A PDF version of this form is available online for download at www.gov.bc.ca/court-forms.

For courthouse locations, addresses, and contact information visit: www.gov.bc.ca/courthouselocations

Family law:

The [Provincial Court Family Rules](#) set out the steps that you must take and the forms you must complete in a family law case. These rules apply to cases in Provincial Court about matters under the [Family Law Act](#) and the [Family Maintenance Enforcement Act](#).

You can find the Rules and Acts on the BC Laws website at www.bclaws.gov.bc.ca.

Preparing a Request to File an Order Form 28

Complete this form if you need to file one of the following orders in Provincial Court:

- a foreign or extraprovincial support order (from a jurisdiction other than British Columbia)
- an order made by the Supreme Court of BC about parenting arrangements or contact with a child
- a support order made by the Supreme Court of BC or registered in the Supreme Court of BC

An order filed in the Provincial Court under section 18 of the Interjurisdictional Support Orders Act, section 195 of the Family Law Act or Rule 15-3(6) of the Supreme Court Family Rules, can be enforced in the Provincial Court as if it were an order of the Provincial Court.

How do I enforce a court order?

There are different enforcement options available under the Family Law Act or the Family Maintenance Enforcement Act depending on what issues your order is about.

Enforcement actions under the Provincial Court Family Rules are set out in [Part – 10 Enforcement](#).

Do you have a support order from another province or territory in Canada or a reciprocating foreign country?

If so, you can register the order under the Interjurisdictional Support Orders Act for enforcement in BC by contacting the designated authority:

Interjurisdictional Support Services
www.isoforms.bc.ca
Vancouver Main Office Boxes
P.O. Box 2074
Vancouver, BC V6B 3S3
Phone: 604-660-2528
Toll-free: 1-866-660-2684

Do you have an extraprovincial order (made in Canada but outside of British Columbia) about parenting arrangements, guardianship of a child, or contact with a child, that you need recognized in British Columbia?

If so, you must apply to the court to recognize the order by filing an [Application for Case Management Order Without Notice or Attendance Form 11](#). Once the order is recognized in BC, you can apply to enforce the order using the [Application About Enforcement Form 29](#).

NOTE: If you have a child support or spousal support order from Supreme Court or another jurisdiction, you may want to contact the BC Family Maintenance Agency first to see if they can help. Visit their website at <https://www.bcfma.ca/> or contact them by phone at 1-800-663-3455.



Need legal help?

It's important to understand the law and make sure you have the right information. If you don't, it can make solving your problem harder. Getting advice from a lawyer can help. You can find a lawyer through:

Legal Referral Service

Visit <https://bclegal.help/> or call at 604-687-3221 to consult a lawyer for up to 15 minutes for free

Legal Aid, Duty Counsel and Family Advice Lawyers

Visit <https://legalaid.bc.ca> or call 1-866-577-2525

Legal Services and Resources

Visit the ClickLaw Legal Services page at www.clicklaw.bc.ca/services



Getting started

You need a certified copy of the order from the other jurisdiction or Supreme Court to file with this form.

A certified copy is a copy of the order made by whoever has the original, that is certified to be a true copy of the original (usually by applying a signature and stamp or seal to the copy). You must contact the court that made the order to get a certified copy.



Filling out the form and preparing to file it

Make sure you follow the instructions in the form and include all the required information.

If you complete the form by hand, be sure it's readable.

How do I prepare the form for filing?

- collect the completed form and certified copy of the order
- print or make copies of the completed form and certified copy of the order: one set for you, one set for the court, and one set for each other party



Filing the form at the registry

After you've filled out the form, you must file it at the [Provincial Court Registry](#):

- where the existing Provincial Court case with the same parties is filed (you already have a court file number)
- nearest to where the child lives most of the time, if the case involves a child-related issue, or
- nearest to where you live if the case does not involve a child-related issue

File the form:

- electronically using the [FLA Online Forms Service](#)
- in person at the court registry
- by mail
- by email, as referenced in Notice to the Profession and Public [NP 28 Current Court Operations](#), or
- by fax filing using the [Fax Filing Cover Page Form 52](#)

There are no fees for filing Provincial Court family documents.

Be sure to bring all copies of the documents to the registry if you are filing in person.

The registry clerk will review your form to make sure it's complete before filing it. You'll be given a copy for your records.

Request to File an Order

Form 28

Provincial Court Family Rules
Rule 134

COURT STAMP

Registry location:

Court file number:

Document number:
For registry use only

This Request to File an Order provides information about a court order that a person is filing in the Provincial Court. Once filed, a support order from a foreign or extraprovincial jurisdiction, or the Supreme Court, can be enforced in Provincial Court under both the *Family Maintenance Enforcement Act* and *Family Law Act* as if it were an order of the Provincial Court.

Part 1 | About the parties

1. My full name is:
Full name of party
- My date of birth is:
(dd/mmm/yyyy)
2. The full name of **other party to this agreement** is:
Their **date of birth** (dd/mmm/yyyy) is:
- ☐ There is an additional party.
The **additional party's** full name is:
Their **date of birth** (dd/mmm/yyyy) is:

Part 2 | Request to file an order

3. I **request to file a copy of the order**, certified by the court that made the order, dated , between the above parties, in the Provincial Court.
(dd/mmm/yyyy)
4. I am filing the order for the purpose(s) described in the following provision(s):
Select all options that apply
- ☐ A **foreign or extraprovincial support order** under section 18 *[registration of extraprovincial or foreign order]* of the *Interjurisdictional Support Orders Act*
- ☐ An **order about parenting arrangements or contact with a child** made by the Supreme Court of British Columbia under section 195 *[Provincial Court enforcement of Supreme Court orders]* of the *Family Law Act*
- ☐ A **support order** made by the Supreme Court of British Columbia under Rule 15-3 (6) *[enforcement in Provincial Court]* of the Supreme Court Family Rules



You must file a certified copy of the order along with this form. A certified copy is a copy of the order made by whoever has the original, that is certified to be a true copy (usually by applying a signature and stamp or seal to the copy). Contact the original court location to get a certified copy.

Part 3 | Address for service

5. My **address for service** of court documents and contact information is:
You must provide an address for service and contact number, but it does not have to be your own if you don't want to

Address:

City: Province: Postal Code:

Email: Telephone:

Lawyer's name and firm name (if applicable):



This information will be available to the other party and the court.

For use by the BC Family Maintenance Agency or Interjurisdictional Support Services staff only

- ☐ This request is being made and/or filed on behalf of the party by:
- ☐ the Director of Maintenance Enforcement ☐ Interjurisdictional Support Services

Notes: